

Contentious Chamber

Decision on the merits 15/2023 of February 21, 2023

File number: DOS-2021-03522

Subject: Complaint regarding the use of a geolocation system

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke Hijmans, president, and Messrs. Dirk Van Der Kelen and Frank De Smet, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter "LCA";

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, hereinafter "the complainant";

The defendant:

Y, hereinafter "the defendant".

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I. Facts and procedure

1.

On March 31, 2021, the complainant filed a complaint with the Data Protection Authority against the defendant.

The complainant was employed by the defendant and, in this capacity, was the main driver of a company vehicle. In this context, he received a personal note comparing the recorded clocking times with the vehicle's trip history. According to this note, he allegedly traveled to both his private address and that of his mother, to a certain café, and to several random streets, which would constitute clocking fraud. The complainant states that he was not aware of the geolocation system (GPS tracking) in the company vehicles until he received the note. According to the complainant, this geolocation system is not mentioned in the work regulations. The complainant then submitted a request for the dismissal of this personal note to the mayor, but it was rejected. The complainant subsequently filed the present complaint.

2.

On September 30, 2021, the complaint was declared admissible by the First Line Service based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.

3.

On October 27, 2021, in accordance with Article 96, § 1 of the LCA, the request from the Contentious Chamber to conduct an investigation was transmitted to the Inspection Service, along with the complaint and the inventory of documents.

4.

On January 10, 2022, the investigation by the Inspection Service was concluded, the report was attached to the file, and it was transmitted by the general inspector to the president of the Contentious Chamber (Article 91, § 1 and § 2 of the LCA).

The report contains findings related to the subject of the complaint and notes the following violations:

- a. violation of Article 5, paragraph 1, a) and paragraph 2, and Article 6, paragraph 1 of the GDPR; and
- b. violation of Article 5, Article 24, paragraph 1, and Article 25, paragraphs 1 and 2 of the GDPR.

The report also includes findings that exceed the subject of the complaint.

The Inspection Service notes, in broad terms, the following violations:

a. violation of Article 4, 11), Article 5, paragraph 1, a) and paragraph 2, Article 6, paragraph 1, a) and Article 7, paragraphs 1 and 3 of the GDPR for the use of cookies that are not strictly necessary;

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b. violation of Article 12, paragraphs 1 and 6, Article 13, paragraphs 1 and 2, Article 14, paragraph 1, Article 5, paragraph 2, Article 24, paragraph 1, and Article 25, paragraph 1 of the GDPR;

c. violation of Article 30, paragraphs 1, 3, and 4 of the GDPR; and

d. violation of Article 38, paragraphs 1 and 3 and Article 39 of the GDPR.

5.

On February 4, 2022, the Litigation Chamber decides, pursuant to Article 95, § 1, 1° and Article 98 of the LCA, that the case can be examined on the merits.

6.

On February 4, 2022, the concerned parties are informed by registered mail of the provisions referred to in Article 95, § 2 as well as Article 98 of the LCA. The concerned parties are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions.

For the findings related to the subject of the complaint, the deadline for receiving the defendant's response conclusions has been set for March 18, 2022, the deadline for the complainant's reply conclusions for April 8, 2022, and finally, the deadline for the defendant's reply conclusions for April 29, 2022.

Regarding the findings extending beyond the subject of the complaint, the deadline for receiving the defendant's response conclusions has been set for March 18, 2022.

7.

On February 4, 2022, the complainant accepts all communications related to the case electronically.

8.

On February 7, 2022, the defendant accepts all communications related to the case electronically.

9.

On March 18, 2022, the Litigation Chamber receives the defendant's response conclusions regarding the findings related to the subject of the complaint. These conclusions also include the defendant's reaction concerning the findings made by the Inspection Service outside the scope of the complaint. In its conclusions, the defendant does not contest the findings regarding the illegitimacy of the geolocation system. The defendant argues that in the meantime, it has drafted and approved a new geolocation policy. This will be communicated to all relevant employees. Regarding the third and fourth findings, the defendant claims to have developed a new privacy statement as well as a new cookie policy. These new proposals are currently under review by the defendant's ICT and Communication services, with a deadline set for March 18, 2022. Regarding the fifth finding, the defendant agrees that there is an inaccuracy regarding the contact details of the DPO. In the conclusions, these are specified. Finally, the defendant states that the aim is to include the annual report on the agenda for information to the College of Mayors and Aldermen and the Permanent Bureau after being presented to the joint management team. Furthermore, the data protection officer will issue a formal opinion to the Municipal Council and the Social Assistance Council and/or the College of Mayors and Aldermen / the Permanent Bureau if necessary.

10. The Litigation Chamber does not receive any response conclusions from the complainant regarding the findings related to the subject of the complaint. Subsequently, the Litigation Chamber also does not receive any reply conclusions from the defendant regarding the findings related to the subject of the complaint.

11. On September 28, 2022, the parties are informed that the hearing will take place on November 18, 2022.

12. On November 18, 2022, the appearing party is heard by the Litigation Chamber. During the hearing, the defendant explains the steps it has already taken regarding data protection since the filing of the complaint and the inspection investigation.

13. On November 21, 2022, the minutes of the hearing are transmitted to the appearing party.

14. The Litigation Chamber has not received any comments regarding the minutes from the defendant.

II. Motivation

15. The Litigation Chamber evaluates below each of the findings included in the report of the Inspection Service in light of the arguments put forward in this regard by the defendant.

II.1. Article 5, paragraph 1, a) and paragraph 2 of the GDPR and Article 6, paragraph 1 of the GDPR

II.1.1. Article 5, paragraph 1, a) and Article 6, paragraph 1 of the GDPR regarding lawfulness

16. The Litigation Chamber recalls that under Article 5, paragraph 1, a) of the GDPR, personal data must be processed lawfully, fairly, and transparently. This means that processing must take place based on legal grounds as defined in Article 6, paragraph 1 of the GDPR. When personal data is processed lawfully, its processing must then be fair. Finally, it must be clear for what purposes personal data is processed and how this occurs.

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17. To elaborate on this fundamental principle, Article 6, paragraph 1 of the GDPR provides that personal data may only be processed on the basis of one of the following legal grounds:

“a) the data subject has consented to the processing of their personal data for one or more specific purposes;

b) the processing is necessary for the performance of a contract to which the data subject is a party or for the performance of pre-contractual measures taken at the request of the data subject;

c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;

d) the processing is necessary to protect the vital interests of the data subject or of another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;

f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, unless such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

Point f) of the first paragraph does not apply to processing carried out by public authorities in the performance of their tasks.”

Findings in the inspection report

18. The Inspection Service asserts that the defendant did not comply with the obligations imposed by Article 5, paragraph 1, a) and paragraph 2 and by Article 6 of the GDPR. The Inspection Service argues the following considerations in this regard:

a. "In the program, the vehicle license plate number is retained, as well as the route taken. In principle, no driver's name is retained, but a department head is well aware in most cases of who is driving a vehicle." [All passages quoted in this decision have been translated freely by the General Secretariat of the Data Protection Authority, in the absence of an official translation]. It is clear from the complaint that the defendant has concretely processed the personal data of the complainant for the drafting and transmission of a note dated October 14, 2020.

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b. The defendant does not specify in its response on what legal basis the personal data of drivers are processed, despite the express request from the Inspection Service in this regard.

Defendant's viewpoint

19. In its conclusions, the defendant does not contest these findings regarding the unlawful processing of personal data within the framework of the geolocation system. It claims to be taking the necessary steps to prevent this in the future and has not used the geolocation system in the meantime.

20. During the hearing on November 18, 2022, the defendant explains the steps that have been taken since the introduction of the aforementioned conclusions. In the meantime, a revised and updated geolocation policy was approved on September 21, 2021, which outlines the legal basis and purposes of the processing of disputed data. Regarding the legal basis of the geolocation system, the defendant relies on legitimate interest (Article 6, paragraph 1, f) of the GDPR) in order to be able to track its

service vehicles. In this regard, the defendant asserts that it has conducted a thorough balancing of interests between, on the one hand, its interest in operationalizing and optimizing its services, and, on the other hand, the interest of employees in not being subjected to excessive processing of their personal data.

Assessment by the Disciplinary Chamber

21. The Disciplinary Chamber emphasizes that the complaint concerns the monitoring of working hours and clocking times in August and September 2020, but that the geolocation policy had already been established since 2009, until it was suspended following the present procedure.

22. According to the documents submitted by the defendant, the Disciplinary Chamber notes that the processing of personal data collected via geolocation began in 2009 on the part of the defendant. On August 20, 2009, this geolocation system was discussed during the meeting of the specific negotiation committee. In this context, an information document regarding the geolocation system was drafted on August 19, 2009. A note concerning the modalities of the geolocation system and a step-by-step plan for its implementation were also drafted on August 19, 2009. Following a collegial decision by the College of Mayors and Aldermen, the internal memo was communicated to the staff on September 28, 2009, after which the geolocation system came into effect.

23. It is important to emphasize that the information document predates the entry into force of the GDPR. At the time of its drafting, it was therefore not possible to take into account the obligations of the GDPR, but rather the obligations arising from Directive 95/46/EC, the predecessor in law to the GDPR. In the information document, the installation and use of the geolocation system were addressed.

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Geolocation is therefore confronted with the principles of purpose limitation, proportionality, and transparency. The Contentious Chamber concludes that the defendant has made a balancing act to maximize the protection of the privacy rights of the individuals concerned. On September 28, 2009, an internal memorandum was also disseminated within the Execution service, explaining the geolocation system. This memorandum defines the various purposes, including the fight against unauthorized use of service vehicles and the mapping of movements in order to monitor the proper and correct execution of the agreed work. The memorandum explains what data can be obtained through the geolocation system (real-time location of the vehicle, distance traveled per day and per vehicle, etc.). The memorandum also mentions that only department heads have access to geolocation data via a license and a login code. All the aforementioned information, including examples of reports and a step-by-step plan for implementation, has been communicated to the staff.

24. The GDPR has been in effect since May 25, 2018. Therefore, the processing of personal data through the geolocation system must be based on a legal basis as defined in Article 6, paragraph 1 of the GDPR, and the processing must take place in accordance with the fundamental principles of Article 5, paragraph 1 of the GDPR. It is the responsibility of the data controller to indicate a legal basis for its processing. This requirement also relates to the principles of legality and transparency that it must implement (Article 5, paragraph 1, point a) of the GDPR – as clarified in Recital 39 of the GDPR). Given that different consequences arise from one legal basis or another, particularly regarding the rights of the individuals concerned, the individuals must clearly know on what legal basis the disputed processing is based. In accordance with Articles 13, paragraph 1, c) and 14, paragraph 1, c) of the GDPR, the individuals concerned must therefore be informed of the legal basis for the processing. As noted by the Inspection Service, the aforementioned information document from 2009 does not mention on what legal basis the personal data of the drivers is processed after being collected via the geolocation system, despite the explicit questions from the Inspection Service in this regard. The defendant does not dispute this finding in its conclusions.

25. Given the above elements, namely the absence of identification of the appropriate legal basis for the collection and processing of geolocation data of the complainant, the Contentious Chamber concludes that the defendant has violated Article 5,

1 See the decision on the merits 38/2021 of March 23, 2022, point 43, available via the following link: <https://www.autoriteprotectiondonnees.be/professionnel/publications/decisions>.

2 See the decision on the merits 47/2022 of April 4, 2022, point 113, and the decision 48/2022 of April 4, 2022, points 125 and 219, of the Contentious Chamber of the Data Protection Authority, available via the following link: <https://www.autoriteprotectiondonnees.be/professionnel/publications/decisions>.

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paragraph 1, a) and Article 6 of the GDPR regarding the period from May 25, 2018, until the end of the processing in question following the findings of the Inspection Service. In this case, the Contentious Chamber finds that the defendant was already aware of the need to adapt the geolocation policy, even before the complaint was filed in this matter, such that the defendant acted negligently. The Contentious Chamber believes that proactive compliance with obligations under the GDPR and other legal provisions is part of the normal expectations of a citizen whose data is processed by the public authority, which is also their employer. The principle must indeed be that the defendant, just like any other data controller, makes every effort to process personal data correctly in accordance with the applicable regulations and does not adopt a wait-and-see attitude, thus waiting for the Data Protection Authority to intervene before deciding to take action to make these adaptations. The Contentious Chamber also takes into account that in drafting its geolocation policy in 2009, the defendant already considered the principles of purpose and proportionality as well as the rights of the data subjects. Furthermore, the 2009 geolocation policy transparently informs the data subjects about the installed geolocation system.

26. During the hearing, the defendant emphasizes that the geolocation policy was modified in 2021. In this new policy, it is explicitly detailed that the geolocation system is based on the legal basis of legitimate interest as understood in Article 6, paragraph 1, f) of the GDPR. Therefore, the Contentious Chamber must verify whether the legitimate interest of Article 6, paragraph 1, f) of the GDPR can serve as a legal basis for such processing carried out by the defendant.

27. The last sentence of Article 6, paragraph 1, f) of the GDPR states that this legal basis of legitimate interest does not apply to the processing of personal data carried out by public authorities in the performance of their tasks. The question thus arises whether the defendant can invoke this legal basis for the geolocation system.

28. Given that the defendant is a public authority, the situation depicted above must be assessed in light of the principle of allocation of administrative powers, the principle of specialty of legal entities, and the principle of legality which defines the conditions under which the administration may interfere with the right to protection of personal data.

3 See also the decision on the merits 141/2021 of December 16, 2021, available via the following link: <https://www.autoriteprotectiondonnees.be/professionnel/publications/decisions>.

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privacy, which includes the right to the protection of personal data.⁴ According to the principle of allocation of administrative powers, established in Article 105 of the Constitution and Article 78 of the special law on institutional reforms of August 8, 1980, administrative authorities have no other powers than those formally assigned to them by the Constitution and the laws and decrees promulgated within this framework. Furthermore, the principle of specialty for legal entities stipulates that any institution endowed with legal personality can only act to achieve the purpose or purposes for which it was created, it being understood that only a legislative norm can assign a public service mission to a legal entity. As the Council of State noted in its opinion on the draft law "relating to the protection of natural persons with regard to the processing of personal data," "a transfer of data from one public authority to another constitutes an interference with the right to the protection of the privacy of the persons concerned. Under Article 8 of the European Convention on Human Rights and Article 22 of the Constitution, as interpreted by a consistent case law of the Constitutional Court, such interference must in particular be based on a legal foundation, be proportionate to the objective pursued, and be organized in a sufficiently precise manner to be predictable for the citizen."⁵

29. In short, a public authority may only process personal data if such processing is necessary for compliance with an obligation imposed on one of the data controllers by or under a legal provision (Article 6, paragraph 1, c) of the GDPR) or if such communication is necessary for the execution of a

public interest mission that has been entrusted to one of the data controllers by or under a law (Article 6, paragraph 1, e) of the GDPR). As far as necessary, the Litigation Chamber emphasizes that it is not excluded that in a limited number of cases, a public authority may rely on Article 6, paragraph 1, f) of the GDPR, but that for the geolocation system as described by the defendant, this is not possible. The legal basis of Article 6, paragraph 1, f) of the GDPR (legitimate interest) cannot apply to the disputed processing.

30. For a data controller to invoke Article 6, paragraph 1, e) of the GDPR to process personal data, such processing must be necessary for the execution of a public interest mission or related to the exercise of the public authority vested in the data controller.

4 The CPVP has already emphasized this in its opinion on the draft law that became the law of July 30, 2018, relating to the protection of natural persons with regard to the processing of personal data (LTD). See CPVP, Opinion No. 33/2018, p. 44.

5 Opinion of the Council of State No. 63.192/2 of April 19, 2018, in Doc. Parl., Chamber, ordinary session, 2017-2018, No. 54-3126/001, p. 421-422.

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31. The Contentious Chamber notes that the GDPR provides no guidance on the question of to what extent the notion of "processing necessary for the performance of a task carried out in the public interest" would also encompass personnel management.

32. However, a clear indication for a broad interpretation of this notion can be found in Regulation (EU) No. 2018/1725 of the European Parliament and of the Council of 23 October 2018 on the protection of individuals with regard to the processing of personal data by the Union's institutions, bodies, and agencies and on the free movement of such data, and repealing Regulation (EC) No. 45/2001 and Decision No. 1247/2002/EC, the 22nd recital of which states the following: "[...]. The processing of personal data carried out for the performance of tasks in the public interest by the institutions and bodies of the Union includes the processing of personal data necessary for the management and functioning of these institutions and bodies. [...]".

33. The Contentious Chamber deduces from this recital that Article 6(1)(e) of the GDPR relates not only to processing necessary for the performance of the public interest task in the strict sense but also to processing necessary for the performance of tasks directly related to that public interest task, including those necessary for the management and functioning of the bodies responsible for that public interest task.

34. The Knowledge Centre of the Data Protection Authority has also already confirmed that the processing of personal data by a public authority in the context of managing its human resources can be carried out on the basis of Article 6(1)(e) of the GDPR, provided that the measures taken are indeed necessary.⁶

35. In light of these elements, the Contentious Chamber concludes that the notion of "processing necessary for the performance of a task carried out in the public interest" must be interpreted broadly. Therefore, the notion of "processing necessary for the performance of a task carried out in the public interest" concerns processing necessary for the performance of the public interest task in the strict sense, but also processing that is necessary for the performance of tasks directly related to that public interest task, including those necessary for the management and functioning of the bodies responsible for that public interest task. Given that the defendant could not carry out its public interest tasks without personnel or without the related management of human resources, the processing of personal data is necessary.

6 See in particular Data Protection Authority, Recommendation No. 02/2020 of 31 January 2020 regarding the scope of the obligation to conclude a protocol to formalize the communications of personal data from the federal public sector, available via the following link:

<https://www.autoriteprotectiondonnees.be/publications/recommandation-n-02-2020.pdf>.

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Personnel management must also be based on Article 6, paragraph 1, e) of the GDPR. 7

36. To lawfully invoke the legal basis of Article 6, paragraph 1, e) of the GDPR, personal data may only be processed if it is necessary for the performance of a task carried out in the public interest or if it is

necessary for the exercise of official authority vested in the controller. In such cases, the processing must always have a basis in European Union law or in the law of the relevant Member State, in which the purpose of the processing must also be stated. Therefore, it must be verified that the conditions are indeed met in this case.

37.

Pursuant to Article 6, paragraph 3 and Recital 45 of the GDPR, processing based on Article 6, paragraph 1, e) of the GDPR must meet the following conditions:

- a. The data controller must be entrusted with the performance of a task carried out in the public interest or related to the exercise of official authority under a legal basis, whether in European Union law or in the law of the Member States;
- b. The purposes of the processing are established in the legal basis or must be necessary for the performance of the public interest task or the exercise of official authority.

38. The Contentious Chamber will evaluate the conditions of public interest, legal basis, and necessity below.

Public Interest Task

39. In this case, the defendant adopted the geolocation policy partly to monitor the professional use of service vehicles and the proper execution of work assigned within the scheduled working hours, and partly to oversee personnel in the performance of their tasks. The Contentious Chamber therefore considers that the public interest consists of effectively implementing scarce public resources, in this case, the vehicle fleet and personnel, and preventing fraud and abuse of services, so that these resources can be used for the execution of the tasks assigned to the municipality.⁸

A Clear, Precise, and Predictable Legal Basis

40. In accordance with Recital 41 of the GDPR, this legal basis or legislative measure should be clear and precise, and its application should be predictable for individuals, in accordance with the case law of the Court of Justice of the European Union (hereinafter: the Court of Justice) and the European Convention on Human Rights (hereinafter ECHR). In the Rotaru⁹ judgment, the European Court of Human Rights more precisely defined the notion of predictability of the legal basis. This case, which concerned surveillance systems of a state's security apparatus, differs in context from the present case. In other cases, the European Court of Human Rights has indeed indicated that it could draw inspiration from these principles, but it considers that these criteria, established and followed in the specific context of this concrete case, are therefore not applicable as such to all cases.¹⁰

41.

Pursuant to Article 186, § 1 of the Decree on Local Administration¹¹, the municipal council of each municipality establishes the status of municipal personnel. The municipal council and the social assistance council establish a common code of ethics for the personnel. It concretizes the provisions of the Decree on Local Administration and may include additional ethical rights and duties, in accordance with the internal control system mentioned in Articles 217 to 220 of the Decree on Local Administration.¹² The internal control that must be adopted by each municipality is described as the set of measures and procedures designed to ensure with reasonable certainty that:

- 1° the set objectives will be achieved and that the risks to achieve them are known and managed;
- 2° legislation and procedures will be respected;
- 3° reliable financial and management reports are available;
- 4° work is carried out effectively and efficiently, using available resources economically;
- 5° assets will be protected and fraud avoided.¹³

42.

In light of these elements, the defendant has a statutory obligation to establish measures and procedures regarding its organization to ensure that it operates effectively with an economical use of resources and avoids fraud, without explicitly defining how this should be done concretely.

43. In its decision 149/2022 of October 18, 2022¹⁴, the Contentious Chamber already emphasized in this regard that public interest or public authority tasks for which the responsible parties

⁹ European Court of Human Rights, May 4, 2000, Rotaru v. Romania.

¹⁰ European Court of Human Rights, September 2, 2010, Uzun v. Germany, § 66.

11 Decree of December 22, 2017, on Local Administration, M.B. of February 15, 2018.

12 Article 193, § 1, second paragraph of the Decree on Local Administration.

13 Article 217 of the Decree on Local Administration.

14 See also decision 124/2021 of November 10, 2021.

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of processing are often not based on precisely defined legislative obligations or standards that set out the essential elements of data processing. Rather, processing occurs on the basis of a more general authorization to act, as is necessary for the execution of the mission, as is the case here. As a result, in practice, the legal basis in question often contains no provision describing concretely the necessary data processing.

Data controllers wishing to invoke Article 6(1)(e) of the GDPR on the basis of such a legal foundation must then verify themselves whether the processing is necessary for the public interest mission and the interests of the data subjects.

Necessity

44. Under Article 6(1)(e) of the GDPR, processing is lawful only if, and to the extent that, it is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller. As explained above, legislation often does not contain a precisely defined provision regarding the necessary data processing.

45. The Court of Justice ruled in the Huber judgment on this necessity condition: "In light of the objective of ensuring an equivalent level of protection in all Member States, the notion of necessity as it results from Article 7(e) of Directive 95/46, which aims to precisely delineate one of the circumstances under which the processing of personal data is lawful, cannot have a variable content depending on the Member States. Consequently, it is an autonomous concept of Community law that must be interpreted in a manner that fully responds to the purpose of this directive as defined in Article 1(1) thereof."

46. The Advocate General also mentioned in his conclusions that "the concept of necessity has a long history in Community law and is well established as an integral part of the proportionality criterion. It means that the authority adopting a measure that infringes a fundamental right in order to achieve a justified objective must demonstrate that this measure is the least restrictive means of achieving that objective. Furthermore, if the processing of personal data is likely to infringe the fundamental right to respect for private life, account must also be taken of Article 8 of the European Convention on Human Rights and Fundamental Freedoms (ECHR), which guarantees the right to respect for private and family life. As the Court stated in the Österreichischer Rundfunk e.a. judgment, if a national measure is incompatible with Article 8 of the ECHR, that measure cannot satisfy the requirement of..."

15 CJEU, Heinz Huber v. Federal Republic of Germany, December 16, 2008, C-524/06.

16 CJEU, Heinz Huber v. Federal Republic of Germany, December 16, 2008, C-524/06, paragraph 52.
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Article 7, under e), of Directive 95/46. Article 8, paragraph 2 of the ECHR provides that an interference with private life may be justified if it pursues one of the objectives listed therein and "in a democratic society, is necessary" for one of those objectives. The European Court of Human Rights has ruled that the notion of "necessity" implies that a "pressing social need" is at stake for a specific intervention by public authorities and that the measure is proportionate to the legitimate aim pursued.

47. This case law formulated in relation to Article 7, e) of Directive 95/46/EC remains relevant to this day. Article 6, paragraph 1 of the GDPR reiterates the terms of Article 7 of Directive 95/46/EC.

48. The Court of Justice has also clarified that if there are realistic and less intrusive alternatives, the processing is not "necessary."

49. The Contentious Chamber must therefore assess whether the installation of the geolocation system was necessary for the aforementioned public interest and whether there were other, less intrusive options to pursue the aforementioned public interest. The necessity of a geolocation system arises from the fact that the report of the meeting of the defendant's special negotiation committee, during which the geolocation system was explained and discussed, mentions that the organization of the vehicle fleet of A needed better monitoring given that in the past there had been numerous

unacceptable cases. Since these incidents concern movements outside the buildings and grounds of the defendant, the latter claims that it is impossible to verify in another way whether the vehicle fleet is being used optimally and to detect and combat potential fraud. Through the geolocation system, an attempt is made to put an end to these practices.

50. Recently, the European Court of Human Rights ruled in the case of *Florindo de Almeida Vasconcelos Gramaxo v. Portugal* regarding the use of geolocation systems to track professional movements. The European Court of Human Rights states that by processing only the geolocation data related to professional movements, the interference with the right to privacy was limited to what is necessary for the defense of the public interest of the defendant. The Contentious Chamber asserts that the processing of personal data via a geolocation system is therefore only possible in the specific circumstances as outlined in this ruling. In the case at hand, the findings of the European Court of Human Rights apply by analogy.

17 CJEU, *Volker & Markus Schecke GbR and Hartmut Eifert v. Land Hessen*, November 9, 2010, joined cases C-92/09 and C-93/09.

18 European Court of Human Rights, December 13, 2022, *Florindo de Almeida Vasconcelos Gramaxo v. Portugal*, paragraphs 120-122.

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personal data processed only relates to professional travel, using a company car¹⁹, which is necessary for the purposes of public interest, namely the prevention of fraud and the proper management of public resources.

51. In light of these elements, the geolocation system indeed constitutes an interference with the right to privacy of the individuals concerned, but this interference is quite limited. The Contentious Chamber notes that if the processing of geolocation data occurs under the established conditions²⁰, namely concerning professional travel with a company vehicle during working hours and limited to the necessary data, with the necessary guarantees that the processing of the collected data occurs in accordance with the fundamental principles of Article 5, paragraph 1 of the GDPR, and that these principles are furthermore explained transparently, this system constitutes a less intrusive interference than other surveillance methods. Moreover, the defendant has no other possible method to monitor the cars and service travel for the aforementioned purposes. Finally, access will only be possible for a limited number of persons defined in the geolocation policy and only if there is a concrete reason for doing so.

II.1.2. Article 5, paragraph 1, a) of the GDPR regarding transparency

52. When the data controller bases processing on public interest, it must be transparent in this regard, notably by stating the public interest pursued, clearly indicating the purposes for which personal data is processed, which personal data is processed, whether the data is shared with other parties, and how long the personal data is retained.

53. As already indicated, the defendant has drafted a new geolocation policy. During the hearing, the defendant submits a draft of this adapted geolocation policy. In it, the defendant outlines the legal basis as well as the purposes and explains how the geolocation system works and how the individuals concerned can verify the presence of such a system before traveling in a vehicle equipped with it. Furthermore, the policy specifies which data is or is not processed, for what purposes this data is processed, and for which purposes it is not processed (such as monitoring compliance with speed limits, continuous monitoring of an employee, etc.). Subsequently, the geolocation policy specifies who has access to the personal data.

19 In the judgment *Florindo de Almeida Vasconcelos Gramaxo v. Portugal*, it concerned a company car that could be used for private and professional travel, but only the geolocation data of professional travel could be processed by the employer.

20 In the judgment *Florindo de Almeida Vasconcelos Gramaxo v. Portugal*, it concerned a company car that could be used for private and professional travel, but only the geolocation data of professional travel could be processed by the employer.

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personnel, the manner in which these individuals can access this data (such as through a login code)

as well as the data retention period. The defendant notes in this regard that the new geolocation policy still needs to be approved – in early 2023 – after which the geolocation system can be launched. In this context, the defendant will develop an approach to explain this new policy to all concerned individuals, involving a mandatory signature for acknowledgment.

54. The Contentious Chamber considers that the mere fact that the defendant did not use the correct legal basis in the past does not inherently invalidate the processing for the future. The Contentious Chamber notes that the collection and processing of geolocation data as defined above can, however, be lawful if the appropriate legal basis is correctly defined and if the aforementioned transparency obligations are respected by the defendant with regard to its personnel. In this regard, the Contentious Chamber refers to the draft of the new geolocation policy that was approved by the Municipal Council on September 21, 2021. Given that only data related to movements made in the context of work (or certain aspects thereof) will be processed, the degree of interference with the right to data protection is limited to what is necessary for the pursuit of the public interest, namely the proper organization and management of the defendant's public resources. The Contentious Chamber thus asserts that the processing of personal data collected via a geolocation system can be carried out by the defendant, provided that the conditions of Article 6, paragraph 1, e) of the GDPR are respected.

II.2. Article 5 of the GDPR, Article 24, paragraph 1 of the GDPR, and Article 25, paragraphs 1 and 2 of the GDPR

II.2.1. Article 5, paragraph 2 of the GDPR, Article 24, paragraph 1, and Article 25, paragraph 1 of the GDPR

55. The Contentious Chamber reminds that each data controller must respect the basic principles of personal data protection, as defined in Article 5, paragraph 1 of the GDPR, and must be able to demonstrate compliance with these principles. This stems from the responsibility outlined in Article 5, paragraph 2 of the GDPR in conjunction with Article 24, paragraph 1 of the GDPR, as confirmed by the Contentious Chamber.

56. Under Articles 24 and 25 of the GDPR, the defendant must take appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is carried out in accordance with the GDPR. In this context, the defendant must apply

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June 23,
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the
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link:

<https://www.autoriteprotectiondonnees.be/professionnel/publications/decisions>.

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effectively the principles of data protection, protect the rights of data subjects, and process only the personal data that is necessary for each specific purpose of processing.

57. In the context of its investigation, the Inspection Service assessed to what extent the defendant has taken the necessary technical and organizational measures to comply with these principles of Article 5, paragraph 1 of the GDPR, and in particular the principle of lawfulness and transparency (see section II.1). In this regard, the Inspection Service concludes that the defendant has not convincingly demonstrated that it has taken the necessary measures for the contested processing to occur in accordance with Article 5, paragraph 1, a) and Article 6, paragraph 1 of the GDPR, given that the Inspection Service has concluded that the processing was not compliant with these principles.

58. During the hearing, the defendant explained that in the meantime, a new geolocation policy had been drafted and approved. The next step in the process is, according to the defendant, to communicate this to all relevant employees. In this way, the defendant intends to comply with the guidelines aimed at making the way of working transparent to the employees.

59. The Contentious Chamber found in section II.1 that there was indeed a violation of Article 5, paragraph 1, a) of the GDPR regarding lawfulness for the period between May 25, 2018, and the time when the defendant ceased the contested processing. Regarding the principle of transparency, the Contentious Chamber notes that in the 2009 geolocation policy and the related internal note, it appears that employees were informed, but the defendant does not demonstrate that it has complied with the principle of accountability since the entry into force of the GDPR, for example, by updating the geolocation policy, re-promoting it, and requesting confirmation of receipt from the relevant employees again. As previously stated, the defendant indeed had to verify on its own initiative whether it was complying with the obligations of the GDPR from May 25, 2018. The Contentious Chamber therefore finds that the defendant has not been able to demonstrate that it has taken the technical and organizational measures to comply, since May 25, 2018, with the principle of lawfulness and the principle of transparency as understood in Article 5, paragraph 1, a) of the GDPR. The Contentious Chamber therefore considers that this constitutes a violation of Article 5, paragraph 2, Article 24, paragraph 1, and Article 25, paragraph 1 of the GDPR.

II.2.2. Article 5, paragraph 1 of the GDPR

60. Although paragraphs 1 and 2 of Article 5 of the GDPR are closely linked, a potential violation of the accountability of Article 5, paragraph 2 of the GDPR does not automatically imply a violation of Article 5, paragraph 1 of the GDPR. Accountability is in

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the concrete translation of the demonstration, through documents, of compliance with the fundamental material principles of the GDPR.

61. Regarding compliance with Article 5, paragraph 1, a), the Contentious Chamber refers to section II.1 of this decision. As for the fundamental principles as set out in Article 5, paragraph 1, b) to f) inclusive, the Contentious Chamber does not have sufficient elements to make a ruling.

II.3. Article 4, 11) of the GDPR, Article 5, paragraph 1, a) and paragraph 2 of the GDPR, Article 6, paragraph 1, a) of the GDPR and Article 7, paragraphs 1 and 3 of the GDPR concerning the use of non-strictly necessary cookies

62. Under Article 4, 11), Article 5, paragraph 1, a) and paragraph 2, Article 6, paragraph 1, a) and Article 7, paragraphs 1 and 3 of the GDPR, it is necessary for the data controller invoking consent as the legal basis for processing to demonstrate that the data subject has genuinely given their consent. Article 7, paragraph 3 of the GDPR sets strict conditions for the withdrawal of valid consent.

II.3.1. Findings in the inspection report

63. The Inspection Service first noted that valid consent for the placement of non-strictly necessary cookies could not be considered due to, on the one hand, the design of the cookie banner interface and, on the other hand, the lack of information in the cookie policy. Furthermore, the Inspection Service found that the defendant did not comply with the conditions regarding the withdrawal of valid consent.

64. Regarding the consent process and more specifically the cookie banner interface, the Inspection Service noted that a data subject had two options on the cookie banner for the use of non-strictly necessary cookies, namely "continue" on one hand and "more info" on the other. These two options were not displayed equally. Moreover, the cookie banner lacked the option for data subjects to refuse the use of non-strictly necessary cookies with one click in the first layer of information when opening the website.

65. Concerning the transparency obligations in the context of informed consent, the Inspection Service found that data subjects did not receive transparent information from the defendant regarding the consequences for their personal data when using cookies. The defendant did not provide explanations to the data subjects via the cookie window regarding the consequences of their choice. The defendant's privacy statement only provided vague information about the consequences for their

personal data.

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following the use of cookies by the defendant, such as non-strictly necessary cookies that the defendant uses specifically on its website, as well as the purposes of processing personal data of the data subjects for each of these cookies; the retention period of the personal data of the data subjects that are processed via non-strictly necessary cookies on the defendant's website or the criteria determining this period; the steps that data subjects were required to take if they wanted to adjust the cookie settings via their internet browser.

66. Finally, the cookie banner did not provide explanations to the data subjects on how to withdraw consent given.

67. In light of these elements, the Inspection Service found that no valid consent in law within the meaning of Article 5, Article 6, paragraph 1, a), and Article 4.11) in conjunction with Article 7 of the GDPR had been requested from the visitors of the website for the use of non-strictly necessary cookies and therefore this consent could not be demonstrated.

II.3.2. Defendant's viewpoint

68. First and foremost, the defendant emphasizes that the process of updating its cookie policy had already been initiated, even before becoming aware of the findings of the Inspection Service, and shortly thereafter, the new cookie policy was implemented on the website and the consent policy regarding the use of cookies on the website was adjusted. The cookie banner was modified so that the data subject was no longer guided in their choice regarding the placement of analytical cookies and other non-strictly necessary cookies. Upon each visit to the website, the data subject can also easily readjust their preferences via a "cookie settings" link at the bottom of the website. As an illustration, the defendant provides various screenshots.

69. Regarding these findings, the defendant argues that a new cookie policy has been developed. At the time of drafting the conclusions, the proposal was with the ICT and Communication services for review, and implementation was scheduled for March 18, 2022. During the hearing, the defendant explains that the new cookie policy now transparently outlines which cookies are used, for what purposes they are used, what happens to the collected data, how the data subject can manage their use, when the defendant transmits cookies to third parties, and under what conditions this may occur. The defendant also emphasizes that the new cookie policy indicates how the data subject can determine, via the browser settings, how the browser interacts with cookies. Furthermore, the new cookie policy informs the data subject of their rights.

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rights and the possibility of contacting the defendant as the data controller, or the data protection officer, and how the website visitor can manage the use of cookies, when cookies are transmitted to third parties and, if applicable, under what conditions. Finally, the new cookie policy also informs users of their rights and the possibility of contacting the defendant as the data controller, or the data protection officer.

II.3.3. Assessment by the Contentious Chamber

70. Regarding valid consent as defined in the aforementioned articles, the Contentious Chamber notes that the interface of the cookie banner and the cookie policy have indeed been adapted since the inspection report, as indicated by the defendant during the hearing. Although the adaptations only took place after the intervention of the Inspection Service, which does not detract from the previous findings of the Inspection Service, the Contentious Chamber will only evaluate the new cookie banner and the new cookie policy hereafter. The violations identified by the Inspection Service were indeed clear and were not contested by the defendant.

71. The Contentious Chamber will first assess the consent process, namely the interface of the cookie banner and the information obligations regarding cookies in the cookie policy. Then, the Contentious Chamber will verify whether the conditions for withdrawing valid consent have been respected.

1. Lawful Consent

72. Before examining whether there is valid consent in this case, the Contentious Chamber recalls the conditions that must be met to establish valid consent. Article 5.3 of the ePrivacy Directive, as

transposed into Article 10/2 of the law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data (hereinafter: data protection law), states that consent from the data subjects is required to place cookies, except when it comes to strictly necessary cookies.

73. Recital 17 of this ePrivacy Directive specifies that for its application, the notion of "consent" should have the same meaning as "consent of the data subject," as defined and further specified by the Data Protection Directive 95/46/EC (now replaced by the GDPR). This has also been clarified in guidelines on consent by the Data Protection Board.

74. Article 4, 11) of the GDPR defines "consent" as "any manifestation of will, freely given, specific, informed, and unambiguous by which the data subject accepts, by a statement or by a clear affirmative action, that personal data concerning them be processed."

75. Article 7 of the GDPR defines the conditions applicable to consent:

"1. In cases where processing is based on consent, the controller shall be able to demonstrate that the data subject has given consent to the processing of personal data concerning them.

2. If the consent of the data subject is given in the context of a written declaration that also concerns other matters, the request for consent is presented in a manner that is clearly distinguishable from those other matters, in an intelligible and easily accessible form, and using clear and plain language. No part of this declaration which constitutes a violation of this regulation is binding.

3. The data subject has the right to withdraw their consent at any time. The withdrawal of consent shall not affect the lawfulness of processing based on consent before its withdrawal. The data subject shall be informed of this before giving consent. It shall be as easy to withdraw as to give consent.

4. When determining whether consent has been freely given, the greatest account shall be taken of whether, among other things, the performance of a contract, including the provision of a service, is conditional on consent to the processing of personal data that is not necessary for the performance of that contract."

1.1 Lawful Consent: Cookie Banner

76. In the new cookie banner, the website visitor has the choice, on the one hand, to manage cookie preferences or, on the other hand, to indicate their agreement (i.e., accept all non-strictly necessary cookies = button for global opt-in). By clicking on the "manage cookie preferences" option, more detailed information appears regarding cookies categorized into three groups: "necessary," "analytical cookies," and "cookies with your preferences," each time providing information in understandable language about the purpose of these cookies. Regarding non-necessary cookies...

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strictly necessary, the individual concerned may therefore give their consent for each of the aforementioned categories. There is therefore no button at the same level as the button for global opt-in allowing for the refusal of consent for all non-strictly necessary cookies. Referring to the report of the Cookie Banner Taskforce of the European Data Protection Board (EDPB)²⁵, the Contentious Chamber notes that these adaptations in the new cookie banner already represent a step in the right direction compared to the findings of the Inspection Service regarding the old cookie banner.

77. For the sake of completeness, the Contentious Chamber would like to point out the following elements. First, the aforementioned report of the Cookie Banner Taskforce specifies the rules regarding valid consent. A button for refusing all non-strictly necessary cookies must be available at the same level of information as the global opt-in at the first layer of information²⁶, for example by providing "accept all" and "refuse all" buttons. Currently, the new cookie banner only provides an opt-in button but no global button to refuse consent. Given the publication of this report after the closure of the debates, the Contentious Chamber presents the above elements as recommendations.

78. Secondly, the Contentious Chamber also notes in the new cookie banner that the "manage my choice" button is white, like the background of the cookie banner, while the "accept all cookies" button has a turquoise background, which contrasts with the white background, thus directing the choice of the individual concerned towards the acceptance of all cookies. As necessary, the Contentious Chamber emphasizes that the aforementioned report of the Cookie Banner Taskforce of the EDPB indicates that this may constitute invalid consent, but this must be assessed on a case-by-case basis.²⁷ Given the publication of this report after the closure of the debates, the Contentious Chamber

presents the above elements as recommendations.

1.2 Lawfully given consent: cookie policy

79. The Contentious Chamber notes that the cookie policy has been adapted in accordance with the majority of the remarks from the Inspection Service. The Contentious Chamber takes note of this and now addresses only the new cookie policy. Although the new cookie policy also moves in the right direction compared to the old cookie policy that was examined by the

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EDPB, Report of the work undertaken by the Cookie Banner Taskforce, January 17, 2023, https://edpb.europa.eu/system/files/2023-01/edpb_20230118_report_cookie_banner_taskforce_en.pdf.

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EDPB, Report of the work undertaken by the Cookie Banner Taskforce, January 17, 2023, https://edpb.europa.eu/system/files/2023-01/edpb_20230118_report_cookie_banner_taskforce_en.pdf.

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EDPB, Report of the work undertaken by the Cookie Banner Taskforce, January 17, 2023, https://edpb.europa.eu/system/files/2023-01/edpb_20230118_report_cookie_banner_taskforce_en.pdf, pp. 6 and 7.

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Inspection Service, it is recommended to also include the following elements in the new cookie policy. First, the Contentious Chamber notes that the cookies present are divided into the following three categories: necessary cookies, analytical cookies, and preference cookies. The Contentious Chamber observes that the category "cookies with your preferences" contains cookies with different purposes. It would therefore be preferable to classify the cookies with the purpose "collect user feedback to improve our website" in the analytical cookies category, while the cookies with the purpose "determine your interests in order to offer tailored content and offers" serve marketing purposes. Given the principle of granularity, the Contentious Chamber recommends further categorizing the cookies in the "cookies with your preferences" category by purpose. This allows the concerned individual to make a more nuanced choice. Secondly, the Contentious Chamber points out that the cookie policy does not specify to whom the data collected via cookies is sent. The Contentious Chamber also recommends including these recipients in the cookie policy. Finally, the Contentious Chamber emphasizes that browser settings do not allow for valid consent under the GDPR. On one hand, because users cannot (yet) give their consent based on the purposes pursued by the different types of cookies. The consent obtained through browser settings is therefore not sufficiently specific in light of the GDPR requirements. On the other hand, because browser settings may default to accepting cookies without the concerned individual being aware, meaning that consent does not constitute a clear affirmative act and is thus not validly given under the GDPR.

80. In light of the above, the Contentious Chamber finds that there is a violation of Article 4, 11), Article 5, paragraph 1, a), and Article 6, paragraph 1 of the GDPR, and that this situation has been partially remedied.

2. Withdrawal of given consent

81. Regarding transparent information on the withdrawal of consent given for the use of non-strictly necessary cookies, the Contentious Chamber reminds that the concerned individual has the right, under Article 7, paragraph 3 of the GDPR, to withdraw their consent at any time and that it must be as easy to withdraw as to give consent.

28 See also the Cookies theme on the website of the Data Protection Authority, available at <https://www.autoriteprotectiondonnees.be/professionnel/themes/cookies>.

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In this regard, under the same provision, the concerned individual must be informed of this right before giving their consent.

82. In this context, the Contentious Chamber notes that at the bottom of the website, there is a link "cookie settings" allowing the concerned individual to return to the aforementioned choice menu of the cookie banner regarding consent for the categories of cookies. According to the aforementioned report from the Cookie Banner Taskforce, the website must offer easily accessible options to withdraw

consent at any time, for example by placing a link in a visible and clear location.²⁹ The "cookie settings" link is located at the bottom of the defendant's website, where links to the privacy policy and cookie policy are usually found, and the link is accessible at all times. The Contentious Chamber therefore finds that the defendant provides transparent information and offers a functionality for the withdrawal of given consent for the use of non-strictly necessary cookies, in accordance with Article 7, paragraph 3 of the GDPR.

83. Given the above, the Contentious Chamber concludes that there is no longer a violation of Article 7, paragraph 3 of the GDPR. This does not preclude that there was historically a violation that has since been resolved.

II.4. Article 12, paragraphs 1 and 6 of the GDPR, Article 13, paragraphs 1 and 2 of the GDPR, and Article 14, paragraphs 1 and 2 of the GDPR, Article 5, paragraph 2 of the GDPR, Article 24, paragraph 1 of the GDPR, and Article 25, paragraph 1 of the GDPR

84. Based on Article 12, paragraph 1, Article 13, paragraphs 1 and 2, and Article 14, paragraphs 1 and 2 of the GDPR, it is necessary for the defendant, as the data controller, to provide the concerned individuals with concise, transparent, and understandable information about the personal data being processed. The aforementioned transparency obligations constitute a realization of the general obligation of transparency set out in Article 5, paragraph 1, a) of the GDPR. As previously stated, the defendant must take appropriate technical and organizational measures to ensure and be able to demonstrate that processing occurs in accordance with the GDPR. In this context, the defendant must effectively apply data protection principles, protect the rights of the concerned individuals, and only process personal data that is necessary for each specific purpose of processing.

II.4.1. Findings in the inspection report

29 EDPB, Report of the work undertaken by the Cookie Banner Taskforce, January 17, 2023, https://edpb.europa.eu/system/files/2023-01/edpb_20230118_report_cookie_banner_taskforce_en.pdf, p. 8.

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85. Based on its investigation, the Inspection Service concludes that the defendant's privacy statement was not transparent and understandable for the data subjects, as required by Article 12, paragraph 1 of the GDPR, and that from a data protection perspective, it contained irrelevant and inaccurate information. Various elements in the privacy statement were superfluous as they did not pertain to the protection of personal data. Secondly, the defendant's privacy statement wrongly created the impression among the data subjects that the defendant fully complied with the GDPR, which is not the case, according to the Inspection Service. Thirdly, the privacy statement incorrectly stated that the data subject must always prove their identity to exercise the rights of data subjects under the GDPR. This was not accurate because, under Article 12, paragraph 6 of the GDPR, the defendant may only request additional information from the data subject when there are reasonable doubts about the identity of the individual making the request referred to in Articles 15 to 21 inclusive of the GDPR. Fourthly, the defendant's privacy statement failed to mention, which is a fault, the possibility for data subjects to lodge a complaint with the Data Protection Authority. Finally, the defendant's privacy statement was not clear and therefore not transparent for the data subjects regarding the random use of the terms "personal data" and "data," the purposes and legal bases for processing, the transmission of personal data, and the adaptations that have been made.

86. Furthermore, according to the findings of the Inspection Service, the defendant's privacy statement was incomplete because the information that must be mandatorily included under Articles 13 and 14 of the GDPR was not all effectively mentioned. In fact, there was no information on the contact details of the Data Protection Officer, the purposes of processing and the legal basis for processing, the recipients or categories of recipients of personal data, the retention period or the criteria used to determine that period, the right of data subjects to request the limitation of processing concerning them, as well as the right to data portability, the right to withdraw consent given, and the right to lodge a complaint with the Data Protection Authority.

II.4.2. Defendant's Perspective

87. Regarding these findings, the defendant claims that a new privacy policy has been developed. At the time of drafting the conclusions, the proposal was with the ICT and Communication services for review. Implementation took place on March 18, 2022. Regarding the privacy statement, the defendant asserts that it has been updated to address the findings of the Inspection Service. Irrelevant passages have thus been removed so that the statement now only contains the relevant provisions in accordance with the GDPR (processing principles, purposes, legal basis, data transfer, rights of data subjects, and contact and complaint options for data subjects). The defendant no longer automatically requires proof of identity prior to the exercise of the rights of the data subject. This proof will only be requested in the absence of another way to verify the identity of the data subject. The privacy statement has also been supplemented with the various options available to the data subject to lodge a complaint in the event of a potential violation of their personal data protection. The privacy statement now also uses consistent formulations, and to clarify the grounds for processing, concrete examples have been included, according to the defendant. Furthermore, under the title "History of Adaptations," the privacy statement also mentions, in addition to the revision date, the themes that have been effectively adapted. Finally, the defendant emphasizes that the following information has been added to the privacy statement: contact details of the Data Protection Officer, purposes of processing, legal basis for processing, mention that only the defendant acts as the controller and receives the data, mention that the defendant does not generally retain data beyond the time necessary for the purpose for which it was collected, rights of data subjects, and options for complaints by data subjects. The defendant therefore believes that the information it provides to data subjects meets the requirements of Articles 12, 13, and 14 of the GDPR.

II.4.3. Assessment by the Contentious Chamber

88. The Contentious Chamber emphasizes that the GDPR defines the information that must be mandatorily included in the privacy statement, particularly in Articles 13 and 14 of the GDPR. These transparency requirements are further defined in the guidelines on transparency under Regulation (EU) 2016/679 of the Data Protection Group.

89. Given that the defendant carries out a large number of data processing operations, involving that a large amount of information must be communicated to the data subjects, the

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The Contentious Chamber considers that a data controller such as the defendant must use a multi-level approach:

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- On the one hand, the data subject must initially have clear and accessible information regarding the existence of information about the processing of their personal data (privacy policy) and the location where they can find it in its entirety.

- On the other hand, without prejudice to the easy accessibility of the privacy policy in its entirety, the data subject must, from the first communication of the data controller with them, be informed of the details of the purpose of the processing concerned, the identity of the data controller, and the rights they possess.

90. The importance of providing this information at multiple levels allows for accessible and understandable information for the data subjects, an obligation that arises notably from Recital 39 of the GDPR. Any additional information within the meaning of Articles 13 and 14 of the GDPR that is necessary to enable the data subject to understand, based on the information provided at this first level, what the consequences of the processing in question will be for them must be added.

91. The Contentious Chamber has consulted the current privacy statement of the defendant and indeed noted on this occasion that it has been adapted to take into account the majority of the remarks from the Inspection Service and that consequently, the privacy statement has been almost entirely brought into compliance with the relevant provisions of the GDPR. The Contentious Chamber takes note of this.

92. However, it is observed that in the new privacy statement, not all findings of the Inspection Service have yet been taken into account.

93. Firstly, the Contentious Chamber notes that the privacy statement does not clearly mention the retention periods for the concerned personal data or the criteria for determining them, as required by

Article 13, paragraph 2, a) of the GDPR. The privacy statement mentions the following in this regard: "we do not generally retain your data for a period exceeding that necessary for the purpose for which it was collected. As a public authority, we are, however, often legally obliged to retain your personal data for longer, notably under archiving legislation. Furthermore, it is also

30 In the same vein: decision 81/2020 of the Contentious Chamber (points 53 and following) and decision 76/2021 (points 58 and following), available via the following link:

<https://www.autoriteprotectiondonnees.be/professionnel/publications/decisions>.

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possible that your personal data may be processed subsequently for scientific and historical research purposes or for statistical purposes." However, it appears from the Guidelines of the Data Protection Group that such wording is insufficient. The Data Protection Group emphasizes in this regard that the retention period / the mention of the retention period is linked to the principle of data minimization set out in Article 5, paragraph 1, c) of the GDPR, as well as to the requirement of data retention limitation stipulated in Article 5, paragraph 1, e) of the GDPR. It specifies that "The retention period (or the criteria for determining it) may be dictated by various factors such as regulatory requirements or industry guidelines, but it should be formulated in such a way that the data subject can assess, depending on the situation in which they find themselves, what the retention period will be concerning specific data or in the case of specific purposes."³¹ The Contentious Chamber finds that this constitutes a violation of Article 13, paragraph 1, c) and Article 14, paragraph 2, c) of the GDPR.

94. Secondly, the Contentious Chamber notes in this regard that the privacy statement does not sufficiently detail the specific legal bases and purposes of the processing, as well as the personal data of the data subjects that are used for this purpose, as required by Articles 13 and 14 of the GDPR. The Contentious Chamber finds that the privacy statement does mention these elements, but the manner in which it does so is not understandable and transparent for the data subjects, given that the data subject does not clearly know which data is processed for which purpose nor under which legal basis this occurs. Ideally, the data controller should provide a listing of the different purposes for which they process personal data, each time mentioning the (categories of) personal data that are processed for this purpose, through which source they were obtained, the duration of their retention, and the (categories of) recipients with whom they are (or may be) shared.

95. The Contentious Chamber notes that the other findings of the Inspection Service have meanwhile been taken into account through the modifications made by the defendant to the privacy statement, but it nevertheless finds that at the time of the inspection inquiry, these findings are indisputable. The Contentious Chamber emphasizes, however, that the defendant has made efforts to correct the information that must be provided under Articles 12, 13, and 14 of the GDPR, albeit after receiving comments from the Inspection Service.

31 Guidelines on Transparency under Regulation (EU) 2016/679, WP260rev01, established on November 29, 2017, p. 25.

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96. The Contentious Chamber deduces from the findings of violations listed above that the defendant has not complied with its transparency obligations under Article 12 of the GDPR nor its information obligations under Articles 13 and 14 of the GDPR. The defendant has thus shown culpable negligence, in violation of its responsibility as defined in Articles 5, paragraph 2 and 24 of the GDPR.

II.5. Article 30, paragraphs 1, 3, and 4 of the GDPR

97. In order to effectively apply the obligations contained in the GDPR, it is essential that the data controller (and the processors) have an overview of the processing of personal data that they carry out. This register thus primarily serves as a tool to help the data controller comply with the GDPR for the various data processing activities they perform, as the register makes the main characteristics of these processes visible. The obligations regarding this register of processing activities are defined in Article 30 of the GDPR.

98. Under Article 30 of the GDPR, every data controller must maintain a record of processing activities carried out under their responsibility. Article 30, paragraph 1, a) to g) inclusive of the GDPR states that

with regard to processing carried out as a data controller, the following information must be available:
a) the name and contact details of the data controller and any joint controllers, and, where applicable, the representative of the data controller and the data protection officer;

b) the purposes of the processing;

c) a description of the categories of data subjects and the categories of personal data;

d) the categories of recipients to whom the personal data have been or will be disclosed, including recipients in third countries or international organizations;

e) where applicable, the transfers of personal data to a third country or to an international organization, including the identification of that third country or international organization and, in the case of transfers referred to in Article 49, paragraph 1, second subparagraph of the GDPR, the documents evidencing the existence of appropriate safeguards;

f) where possible, the envisaged time limits for erasure of the different categories of data;

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g)

to the extent possible, a general description of the technical and organizational security measures referred to in Article 32, paragraph 1 of the GDPR.

99. The record of processing activities must be drawn up in written form, including electronic form (Article 30, paragraph 3 of the GDPR). In accordance with Article 30, paragraph 4 of the GDPR, the data controller shall make the record of processing activities available to the supervisory authority upon request.

100. Regarding the record of processing activities, the Inspection Service notes that the defendant has not complied with the obligations imposed by Article 30, paragraphs 1, 3, and 4 of the GDPR. The Inspection Service has only received part of the record of processing activities, namely the part related to building maintenance. According to the findings of the Inspection Service, the part that was transmitted does not meet the minimum requirements of Article 30, paragraph 1 of the GDPR as the following mandatory mentions are missing:

a. The contact details of the defendant (Article 30, paragraph 1, a) of the GDPR).

b. A description of the categories of data subjects and the categories of personal data (Article 30, paragraph 1, c) of the GDPR). A brief general enumeration is provided, but it is not a description according to the Inspection Service.

101. The Contentious Chamber must rule on whether Article 30, paragraph 1, c) of the GDPR requires a description of the categories of personal data and the categories of data subjects to be included in the record of processing activities, or if an enumeration may suffice.

102. Regarding the lack of protection of the categories of data subjects and personal data, the defendant requests clarifications in its conclusions. General examples are indeed included in this regard, but the defendant claims that these do provide a picture of the type of data that is targeted. In the GDPR, the defendant cannot find a definition of what a description should be.

103. The Contentious Chamber finds that Article 30, paragraph 1, c) of the GDPR requires that a description of the categories of data subjects and the categories of personal data be included in the record of processing activities. The data subjects are the identified or identifiable natural persons whose data is processed (Article 4.1 of the GDPR). Regarding the categories of data, it must of course be personal data as defined in Article 4.1 of the GDPR.

104. The Contentious Chamber notes that the defendant provides in its record of processing activities an enumeration for:

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the categories of data subjects (Article 30, paragraph 1, c) of the GDPR), namely the "staff members."

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the categories of personal data (Article 30, paragraph 1, c) of the GDPR), namely the "Geolocation System Data [...] : license plate, route taken, vehicle description."

105. The Contentious Chamber recalls the purpose of the register of processing activities. In order to effectively apply the obligations contained in the GDPR, it is essential that the

data controller (and the processors) have an overview of the personal data processing activities they carry out. This register thus primarily serves as a tool to assist the data controller in complying with the GDPR for the various data processing activities they perform, as the register makes the main characteristics of these processing activities visible. The Contentious Chamber considers that this register of processing activities is an essential tool within the framework of the aforementioned accountability (Article 5, paragraph 2 and Article 24 of the GDPR) and that this register underpins all the obligations imposed by the GDPR on the data controller.

106. Regarding the mandatory mentions under Article 30, paragraph 1, c) of the GDPR concerning the description of the categories of data subjects and categories of personal data, the Contentious Chamber notes that neither the text of the GDPR nor its purposes prevent the enumeration of categories of personal data and categories of data subjects from being included in the register of processing activities or that a more detailed description may be necessary.

107. Regarding the categories of recipients, the Contentious Chamber refers to a recommendation from the CPVP³² and to the doctrine³³ which explain that it is certainly not necessary to mention the individual recipients of the data, but they can, however, be grouped by category of recipients. Mutatis mutandis, this statement can also be applied to the categories of personal data and data subjects. In this regard, the Contentious Chamber emphasizes that the information concerning the categories of personal data and data subjects must be established in such a way that in the event of an exercise of the right of access by a data subject, the data controller must be able to provide specific information to that data subject regarding the precise data being processed and the specific recipients of their personal data.³⁴

32 Consultable via this link:

<https://www.autoriteprotectiondonnees.be/publications/recommandation-n-06-2017.pdf>.

33 W. Kotschy, "Article 30: records of processing activities", in Ch. KUNER The EU General Data Protection Regulation (GDPR), a commentary, 2020, p. 621.

34 CJEU, January 12, 2023, Österreichische Post AG, C-154/21, ECLI:EU:C:2023:3, paragraph 36. Decision on the merits 15/2023/2023 - 32/36

108. The Contentious Chamber emphasizes, however, that the content of the record of processing activities must always be assessed on a case-by-case basis to verify whether the description or enumeration contained therein is sufficiently clear and concrete. In this case, the Contentious Chamber finds that the description "staff" is clear, given that it is evident from this record that it refers to the members of the building maintenance service. The enumeration of the data processed by the geolocation system software is clear. Therefore, the Contentious Chamber concludes that in this instance, the aforementioned enumerations comply with the requirements of Article 30, paragraph 1, c) of the GDPR.

109. Regarding the missing mentions of Article 30, paragraph 1, a) of the GDPR, the Contentious Chamber notes that the contact details of the data protection officer are included in the adapted version of the record of processing activities. Nevertheless, there has historically been a violation of Article 30, paragraph 1, a) of the GDPR, which has since been resolved.

110. Concerning the transmission of the record of processing activities, the defendant does not contest the fact that this record was not transmitted in its entirety to the Inspection Service. This record of processing activities indeed consists of several Excel files, namely one document per public service, and the defendant believed that it only needed to transmit the processing record of the relevant service. In its conclusions, the defendant states its readiness to transmit the complete record of processing activities and has done so prior to the hearing. The Contentious Chamber cannot deduce from subsequent correspondence that the Inspection Service had requested these additional records.

111. The Contentious Chamber considers that the defendant timely transmitted the record of processing activities, particularly concerning the disputed geolocation system, in electronic form via

email at the first request of the Inspection Service. The additional records were not subsequently requested by the Inspection Service. Therefore, the Contentious Chamber finds that there is no violation of Article 30, paragraphs 3 and 4 of the GDPR. However, there has historically been a violation regarding Article 30, paragraph 1, a) of the GDPR, which the Contentious Chamber notes has been resolved through corrective measures.

II.6. Article 38, paragraphs 1 and 3 of the GDPR and Article 39, paragraph 1 of the GDPR

112. The GDPR recognizes that the data protection officer is a key figure in the protection of personal data, whose designation, position, and tasks are subject to rules. These rules assist the data controller in

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fulfill its obligations under the GDPR but also assist the data protection officer in properly carrying out their duties.

113. Article 38, paragraph 1 of the GDPR stipulates that the data controller shall ensure that the data protection officer is involved, in an appropriate and timely manner, in all issues related to the processing of personal data.

114. Furthermore, Article 38, paragraph 3, final part of the GDPR states that the data protection officer shall report directly to the highest management level within the organization concerned. Additionally, the data protection officer may issue an annual report of their activities and make it available to the highest management level.

115. The Inspection Service finds that the defendant has not complied with the obligations imposed by Article 38, paragraphs 1 and 3 of the GDPR. According to the Inspection Service, the defendant does not demonstrate that their data protection officer has been involved in an appropriate and timely manner in the context of the complaint. Furthermore, the defendant does not demonstrate that their data protection officer actually reports to the highest management level of the defendant.

116. The defendant does not dispute that it is of crucial importance for the data protection officer to be involved as early as possible in all matters related to data protection. To this end, efforts have been made at the level of their awareness, notably during the consultation among department heads on December 3, 2021. Furthermore, the data protection officer issues formal opinions to the Municipal Council/Social Assistance Council and/or the College of Mayors and Aldermen as needed; there were 5 formal opinions in 2021. The defendant also provides documents attesting that the data protection officer works proactively, for example, 44 informal opinions in 2021. Finally, the defendant indicates that the annual report is included for information on the agenda of the College of Mayors and Aldermen and the Permanent Bureau.

117.

In light of the above elements, the Contentious Chamber finds that the data protection officer is regularly involved in matters related to the processing of personal data. Specifically regarding the context of the complaint, the Contentious Chamber finds that the data protection officer was involved following the present complaint. The complaint was filed on March 31, 2021, after consultations on November 16, 2020, and February 23, 2021, between the defendant and the data protection officer regarding the geolocation policy. Based on all the documents submitted, there is no concrete evidence allowing the Contentious Chamber to conclude that the data protection officer was not involved in a timely manner. However, the Contentious Chamber emphasizes that the documentation of timely involvement is essential.

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may be useful for the data controller itself, but also for the Inspection Service in case of a potential complaint as well as for the evaluation (on a case-by-case basis) by the Litigation Chamber.

118. The Inspection Service also found a violation of Article 38, paragraph 3 of the GDPR regarding reporting at the highest level of management. The defendant had specified to the Inspection Service during the investigation that the Data Protection Officer was the chair of the Information Security unit, which reports to the General Director via the annual report. The Inspection Service refers in this regard to a previous decision of the Litigation Chamber which indicated that in a municipality, the College of Mayors and Aldermen was the highest level of management on a daily basis. The Litigation Chamber

notes that during the period from October to December 2020, an audit of the defendant was conducted by Audit Vlaanderen. In this audit, it was recommended that the defendant have its own organizational management framework, providing for a report to the College of Mayors and Aldermen, but that this was lacking in practice. The Litigation Chamber observes that the defendant has begun to implement this recommendation as in 2021, 5 formal opinions and 44 informal opinions were addressed directly to the College of Mayors and Aldermen, in addition to the annual report that the Data Protection Officer submits annually.

119.

In light of the above, the Litigation Chamber finds that there is no violation of Article 38, paragraphs 1 and 3, nor of Article 39, paragraph 1 of the GDPR. However, it does not preclude that there has historically been a violation regarding Article 38, paragraph 3 of the GDPR and that this has been resolved by corrective measures.

III. Sanctions

120. Based on the documents in the file, the Litigation Chamber finds that the following (historical) violations of the GDPR are at issue:

- Article 5, paragraph 1, a) and paragraph 2 and Article 6, paragraph 1 of the GDPR, Article 24, paragraph 1 and Article 24, paragraphs 1 and 2 of the GDPR for the geolocation system;
- Article 4, 11), Article 5, paragraph 1, a) and paragraph 2, Article 6, paragraph 1, a) and Article 7, paragraphs 1 and 3 of the GDPR for the use of non-strictly necessary cookies;
- Article 12, paragraphs 1 and 6, Article 13, paragraphs 1 and 2, Article 14, paragraphs 1 and 2, Article 5, paragraph 2, Article 24, paragraph 1 and Article 25, paragraph 1 of the GDPR for information obligations;
- Article 30, paragraph 1, a) of the GDPR for the contact details of the officer in the register of processing activities; and
- Article 38, paragraph 3 of the GDPR for direct reporting at the highest level of management.

121.

Although the defendant has taken corrective measures to remedy these violations in whole or in part, it is nonetheless established that violations of the right to data protection have occurred. As already stated, the principles of lawfulness and transparency are fundamental principles of the GDPR. The Data Protection Officer also plays a crucial role in data protection with respect to a data controller. The Litigation Chamber recalls that the GDPR had already come into effect in 2016 and was applicable from May 25, 2018. In the meantime, almost 5 years have passed since the GDPR has been in effect, a period that has not been sufficiently utilized by the defendant to make its operations compliant with the GDPR.

122. In determining the sanction, the Litigation Chamber takes into account the fact that the defendant has already (partially) rectified the situation and has provided evidence thereof. Furthermore, the Litigation Chamber emphasizes that it is not competent to impose an administrative fine on public bodies, in accordance with Article 221, § 2 of the Data Protection Act.³⁵ In light of these elements, the Litigation Chamber considers that a reprimand is recommended in this case based on Article 100, § 1, 5° of the LCA.

123. The Litigation Chamber proceeds to dismiss the other complaints and findings of the Inspection Service as, based on the facts and the documents in the file, it cannot conclude that there is a violation of the GDPR. These complaints and findings of the Inspection Service are therefore considered manifestly unfounded within the meaning of Article 57, paragraph 4 of the GDPR.³⁶

IV. Publication of the Decision

124. Given the importance of transparency regarding the decision-making process of the Litigation Chamber, this decision is published on the website of the Data Protection Authority. However, it is not necessary for this purpose that the identification data of the parties be directly communicated.

³⁵ Law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data, M.B., September 5, 2018.

³⁶ See point 3.A.2 of the Policy on Dismissal of Complaints of the Litigation Chamber, dated June 18, 2021, available at: <https://www.autoriteprotectiondonnees.be/publications/politique-de-classement-san>

s-suite-de-la-chambre-contentieuse.pdf.